

9:00 AM

Line 6

25-CIV-08159 TRACY STETZ BILLUPS VS. COUPA SOFTWARE INCORPORATED, A
DELAWARE CORPORATION

TRACY STETZ BILLUPS
COUPA SOFTWARE INCORPORATED, A DELAWARE
CORPORATION

JOHN E LATTIN
ANTHONY S. ORTIZ

Defendant's Motion to Strike Portions of Plaintiff's Complaint

TENTATIVE RULING:

For clarification the Court notes Defendant Coupa Software Incorporated has provided the improper address for the hearing because Department 20 is no longer located in San Mateo as the notice states, but instead at the Northern Branch Courthouse, 1050 Mission Road, Courtroom L, South San Francisco, CA 94080. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant Coupa Software Incorporated's motion to strike paragraph 12, lines 26-27 from Plaintiff Tracy Stetz Billups's Complaint filed October 13, 2025, is DENIED AS MOOT because its demurrer was sustained in entirety.

Background

Plaintiff is a former employee of defendant. Plaintiff's Complaint raises 17 causes of action and avers that, prior to her alleged pretextual termination, she was subjected by her supervisors, managers, and other agents of defendants to sexual harassment, discrimination on the bases of sex/gender, age, religion, and marital status, and severe and intentional emotional distress. When plaintiff reported the harassment and discrimination, defendants failed to take action to end the harassment and discrimination and instead allegedly retaliated against plaintiff for lodging her complaints about unlawful conduct by terminating her employment.

Plaintiff also contends that defendants failed to properly classify her as a nonexempt employee, failed to pay her minimum wage overtime pay, failed to provide all meal and rest breaks or, alternatively, meal and rest break premium pay, failed to provide accurate wage statements and failed to reimburse her for all necessary business expenses that she incurred in defendants' behalf, all of which caused her significant harm and distress.

Concurrent to their demurrer defendant brings the instant motion to strike the allegation from plaintiff's complaint that plaintiff's supervisor Chris Bartolo "had a well-known affair with a female Sourcing Manager." (MTS p. 3, quoting Compl. ¶ 12, lines 26-27.) Defendant asserts said

information (paragraph 12, lines 26-27) injects immaterial, prejudicial, and scandalous matter into the pleadings and should be stricken pursuant to Code of Civil Procedure sections 435 and 436 because it serves no legitimate litigation purpose. Plaintiff opposes, contending that controlling case law—indeed, *Miller v. Department of Corrections* (2005) 36 Cal. 4th 446, the case relied upon by defendant—belies defendant’s position. Moreover, the information is essential to plaintiff’s sexual harassment (and other claims) because *Miller* confirms that a plaintiff need not have been personally propositioned to state such a claim. (*Id.* at 468.)

Legal Standard

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) A court may, upon motion or in its discretion, “[s]trike out any irrelevant, false, or improper matter inserted in any pleading” and “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436, subds. (a)-(b).) An “irrelevant matter” is an allegation that “is not essential to the statement of a claim or defense,” “is neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., § 431.10, subds. (b)-(c).)

Discussion

The motion is DENIED AS MOOT because demurrer was sustained. The Court notes that the cited singular reference to an affair, in an action raising other allegations of misconduct on the basis of a variety of protected classes (age, gender, marital status), is not overly or unduly prejudicial.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

25-CIV-08818

CASAHOUSE LLC VS. JACQUELINE YEH, ET AL

CASAHOUSE LLC
JACQUELINE YEH

GLEN A VAN DYKE

Plaintiff's Motion to Compel Arbitration and Stay Litigation

TENTATIVE RULING:

Plaintiff CasaHouse LLC's Motion to Compel Arbitration and Stay Litigation is GRANTED
Code Civ. Proc. section 1281.2, as follows:

California law strongly favors arbitration, finding it a speedy and relatively inexpensive manner of dispute resolution. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97 (*Armendariz*.) A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1291.2.) The court must grant the petition to compel arbitration unless it finds the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Id.*, § 1281.2.) Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The moving party bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972].)

California courts—applying both the FAA and Code Civ. Proc. § 1281.2 — have developed a well-settled three-step burden-shifting framework for motions to compel arbitration. The burden of persuasion always remains with the moving party to prove the existence of a valid arbitration agreement by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158; *Mar v. Perkins* (2024) 102 Cal.App.5th 201.

In the first step, the moving party must first produce prima facie evidence of a written agreement to arbitrate the controversy. (*Mar v. Perkins, supra*, 102 Cal.App.5th 201; *Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872.) This initial showing does not require a full evidentiary presentation; producing the agreement itself, or a copy of it, is typically sufficient to satisfy this threshold. (*Kostandian v. American Honda Motor Co., Inc., supra*, 120
